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§ 300.1. Educational Institution Exemption.

11 CA ADC § 300.1
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Barclays California Code of Regulations
Title 11. Law
Division 1. Attorney General
Chapter 4. Regulations Adopted Pursuant to the Supervision of Trustees and Fundraisers for Charitable Purposes Act (Refs & Annos)
Article 1. Registration, Reporting, and General Supervision of Trustees and Fundraisers

11 CCR § 300.1

§ 300.1. Educational Institution Exemption.

Currentness

(a) Educational institutions are exempt from the filing, registration, and reporting provisions of the Act. “Educational institution” means that term as defined in Corporations Code section 10251, any public school, unincorporated association, or any nonprofit corporation that meets all of the following criteria:

(1) Primarily presents formal instruction;

(2) Maintains a regular faculty and curriculum;

(3) Has a regularly enrolled body of students; and

(4) Has either physical or virtual classroom facilities.

(b) “Formal instruction” or “curriculum” may include, but is not limited to, any of the following:

(1) A program that teaches the arts (including, but not limited to, dance, drama, and music), cultural studies, a foreign language, geography, language arts (including, but not limited to, the alphabet), math (including, but not limited to, elementary numbers and puzzle solving), practical life and sensorial skills, or science (including, but not limited to, basic science and nature studies).

(c) An entity that primarily provides custodial care for children and not formal instruction is not an educational institution for purposes of this section. Even if such entity has some educational activities, if the primary purpose of the program is not the presentation of formal instruction, it is not an educational institution.

(d) Designation as an “educational institution” or “school” by the Internal Revenue Service (IRS) and/or the Franchise Tax Board (FTB) does not determine whether the organization is exempt from registration and reporting with the Attorney General's Registry of Charities and Fundraisers.

Credits

NOTE: Authority cited: Sections 12585, 12586 and 12587, Government Code. Reference: Section 12583, Government Code.

HISTORY

1. New section filed 11-8-2019; operative 2-1-2020 pursuant to Government Code section 11343.4(b)(2) (Register 2019, No. 45).

2. Amendment of subsections (a)(1)-(4) and (d) and amendment of NOTE filed 3-26-2024; operative 3-26-2024 pursuant to Government Code section 11343.4(b)(3) (Register 2024, No. 13).

This database is current through 10/9/26 Register 2026, No. 41.

Cal. Admin. Code tit. 11, § 300.1, 11 CA ADC § 300.1

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